

Kuldip Dubey v. U.P. Power Corporation — pending representation treated as Clause 6.5 bill-correction application

High Court of Judicature at Allahabad · Division Bench · 16 November 2016 · Writ-C No. 54279 of 2016 ·

Representation treated as Clause 6.5 application; EE to decide in two weeks; September 2016 arrears stayed.

HEADNOTE

A consumer's pending representation against unexplained arrears in electricity bills is to be treated as an application under Clause 6.5 of the Electricity Supply Code, 2005, which provides for correction of the bill. The Executive Engineer must pass an appropriate order within two weeks after hearing the consumer. Recovery of the September 2016 arrears remains in abeyance until that representation is disposed of.

FACTUAL SUMMARY

Kuldip Dubey, a consumer of U.P. Power Corporation, was billed with arrears he said he did not owe: he claimed every bill had been paid and it was unclear how the arrears had been computed. He had already filed a representation, which remained pending before the Executive Engineer. He invoked the High Court's writ jurisdiction seeking relief against the disputed arrears, including those shown in the September 2016 bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correction-application

HOLDING

Clause 6.5 of the Electricity Supply Code, 2005 provides for correction of the electricity bill. A representation already pending before the Executive Engineer against unexplained arrears is to be treated as an application under Clause 6.5; the Executive Engineer must pass an appropriate order within two weeks after giving the consumer an opportunity of hearing. Recovery of the disputed September 2016 arrears remains in abeyance until that representation is disposed of. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer's pending representation against unexplained arrears in electricity bills is to be treated as an application under Clause 6.5 of the Electricity Supply Code, 2005, which provides for correction of the bill. The Executive Engineer must pass an appropriate order within two weeks after hearing the consumer.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ARREARS SHOWN IN THE BILLS WERE CORRECTLY COMPUTED OR WHETHER ALL BILLS HAD IN FACT BEEN PAID

Merits of the billing dispute left to the Executive Engineer under Clause 6.5 ¶ 1